



BAKERSFIELD

PUBLIC WORKS

CITY OF BAKERSFIELD

FISCAL YEAR 2022-2023

ANNUAL COMPLIANCE REPORT FOR
PLANNED DRAINAGE AREA FEES

Prepared in accordance with California Government Code §66006

CITY OF BAKERSFIELD

**ANNUAL COMPLIANCE REPORT FOR
PLANNED DRAINAGE AREA FEES**

FY 2022-2023

City Council

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Jennifer Byers.....	Acting Economic & Community Development Director
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Annual Compliance Report for Planned Drainage Area Fees

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Introduction

There may be imposed by local ordinance a requirement for the payment of fees for purposes of defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from local or neighborhood drainage areas and of constructing planned sanitary sewer facilities for local sanitary sewer areas. (GC §66483)

Government Code Section 66006 requires that the local agency shall, within 180 days after the last day of each fiscal year, make available to the public specific information. The specific information to be made available to the public is summarized on Page 3 of this report.

Pursuant to Government Code Section 66006, after the information contained in the Report is made available to the public, the Council shall review the information in the Report at the next regularly scheduled public meeting. However, the public meeting must occur not less than 15 days after the information contained in the Report is made available to the public.

The planned drainage areas (PDA's) are separated into individual accounts in accordance with California Government Code §66483 and Bakersfield Municipal Code §16.32.060(D).

There are currently nine planned drainage areas within the metropolitan Bakersfield area subject to Government Code Section 66006:

1. Breckenridge PDA (Ward 3) – This planned drainage area covers an irregularly shaped watershed of 6,458 acres in Northeast Bakersfield, from Paladino Drive in the north to Breckenridge Road in the south; from Morning Drive and SR 178 at the northwest to Breckenridge Road and Edison Road at the south, and extending east of Comanche Road. The drainage system has been partially completed by a developer and is subject to a reimbursement agreement. The remaining system will be completed in portions by a combination of developers and the City.
2. Brimhall PDA (Ward 4) – This planned drainage area was created to pay for the construction of a storm drainage system and sump for a 52 acre area of residential and commercial property at the north east corner of Jewetta Avenue and Brimhall Road. This drainage system was designed to consolidate the drainage issues of several small parcels in the area into one system for economies of scale.
3. Fairview PDA (Ward 1 and County) – This planned drainage area was created to pay for the construction of a drainage system to serve the area between Pacheco Road and the Arvin-Edison Canal and South "H" Street and Union Avenue.
4. Golden Valley PDA (Ward 1) – This planned drainage area was created to pay for the drainage facilities for the area of Hosking Avenue between South Union Avenue and east of South H Street. Portions of the system were built during the construction of Golden Valley High School. The Kern High School District has been reimbursed in full for its proportionate share of the construction costs incurred to upsize the storm drain lines. The remaining funds

will be used to reimburse developers or to offset costs incurred by the city which may construct additional portions of the drainage facilities.

5. Orangewood PDA (Ward 3 and County) – This planned drainage area was created to pay for the construction of a drainage system serving the area east of Morning Drive, north of Breckenridge Road, and extending northward and eastward to the southeast boundary of the Breckenridge PDA.
6. Pioneer PDA (Ward 3 and County) – This planned drainage area was created to pay for the construction of a drainage system serving the area north of Niles Street and SR 184, on both sides of Morning Drive.
7. Riverlakes PDA (Wards 3 and 4) – This planned drainage area was created to pay for the drainage system serving the Riverlakes development – an area defined by the Friant-Kern Canal in the south and Norris Road on the north, between Calloway Drive and Coffee Road, with a section both north and south of Hageman Road east to Fruitvale Avenue. Since improvements for the Riverlakes PDA are complete, fees are no longer assessed. The PDA's FY 2017-2018 beginning balance of \$118,095.43 was used to partially offset costs associated with capital improvement project #E4K103 that improved storm drains within the PDA.
8. Shalimar PDA (Ward 3 and County) – This planned drainage area was created to pay for the drainage system serving an irregularly shaped area from SR 178 on the north to the Southern Pacific Railroad on the south, east of Sterling Road to Shalimar Road in the south portion of the area, to Morning Drive in the north portion of the area.
9. Tevis Ranch PDA (Ward 5) – This planned drainage area was created to pay for the construction of a drainage system to improve the efficiency of the existing drainage facilities in the area south of White Lane and between Old River Road and Buena Vista Road. The project consists of a storm drain system that will drain water from three existing retention basins to a single detention basin. The water will then be pumped into the Buena Vista Canal.

Each PDA's fiscal year activity will be reported separately.

Annual Reporting Requirements

Government Code Section 66006 (b) (1) sets forth the annual compliance reporting requirements as:

For each separate account or fund established pursuant to subdivision (a), the local agency shall, within 180 days after the last day of each fiscal year, make available to the public the following information for the fiscal year:

- (A) A brief description of the type of fee in the account or fund.
- (B) The amount of the fee.
- (C) The beginning and ending balance of the account or fund.
- (D) The amount of the fees collected and the interest earned.
- (E) An identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.
- (F) An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.
- (G) A description of each inter-fund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an inter-fund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.
- (H) The amount of refunds made pursuant to subdivision (e) of Section 66001 and any allocations pursuant to subdivision (f) of Section 66001.

Items A through H listed above are reproduced on each report to ensure accuracy, understanding, and compliance.

BRECKENRIDGE PLANNED DRAINAGE AREA

(A) Description of fee

- Prior to filing any final map or parcel map, the subdivider shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from the following local and neighborhood drainage areas pursuant to drainage plans adopted by the council therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(D)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PDA boundaries¹:

Development Type	Drainage fee per gross acre
Single Family	\$7,822
Multi-family & Mobile Home	\$12,125
Commercial & Industrial	\$16,740

(C) Beginning and ending fund balance

- Breckenridge planned drainage area

Beginning Balance @ 7/1/22	\$1,168,440.52
Ending Balance @ 6/30/23	\$1,346,698.96

(D) Fees collected and interest earned

- PDA fees \$ 148,624.70
- Interest Earned \$ 29,633.74

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 136-05 available at: <http://lf/WebLink/0/doc/460682/Page1.aspx>

BRIMHALL PLANNED DRAINAGE AREA

(A) Description of fee

- Prior to filing any final map or parcel map, the subdivider shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from the following local and neighborhood drainage areas pursuant to drainage plans adopted by the council therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(D)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PDA boundaries¹:

<u>Zone</u>	<u>Cost per acre</u>
R-1	\$2,803
R-2	\$4,057
C-1	\$6,639

(C) Beginning and ending fund balance

- Brimhall planned drainage area

Beginning Balance @ 7/1/22	\$6,521.89
Ending Balance @ 6/30/23	\$6,766.66

(D) Fees collected and interest earned

- PDA fees \$0.00
- Interest Earned \$244.77

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 222-04 available at: <http://lf/WebLink/0/doc/350777/Page1.aspx>

FAIRVIEW PLANNED DRAINAGE AREA

(A) Description of fee

- Prior to filing any final map or parcel map, the subdivider shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from the following local and neighborhood drainage areas pursuant to drainage plans adopted by the council therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(D)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PDA boundaries¹:

$$\text{\$1,100,000.00} \div 645 \text{ acres} = \text{\$1,700 / gross acre}$$

(C) Beginning and ending fund balance

- Fairview planned drainage area

Beginning Balance @ 7/1/22	\$14,739.93
Ending Balance @ 6/30/23	\$15,090.42

(D) Fees collected and interest earned

- PDA fees \$0
- Interest Earned \$350.49

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 58-81 is available at: <http://lf/WebLink/0/doc/74036/Page1.aspx>

GOLDEN VALLEY PLANNED DRAINAGE AREA

(A) Description of fee

- Prior to filing any final map or parcel map, the subdivider shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from the following local and neighborhood drainage areas pursuant to drainage plans adopted by the council therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.). BMC §16.32.060(D)

(B) Amount of fee

- The fee is calculated by multiplying the acreage within each zone by the cost per acre within the PDA boundaries¹:

R-1 Zone: Price per acre = \$4,682 x 93.19 acres = \$436,316
Commercial Zone: Price per acre = \$10,020 x 17.49 acres = \$175,250

(C) Beginning and ending fund balance

- Golden Valley planned drainage area

Beginning Balance @ 7/1/22	\$183,440.54
Ending Balance @ 6/30/23	\$187,804.32

(D) Fees collected and interest earned

- | | |
|-------------------|------------|
| • PDA fees | \$0 |
| • Interest Earned | \$4,363.78 |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 055-05 available at: <http://lf/WebLink/0/doc/456048/Page1.aspx>

ORANGEWOOD PLANNED DRAINAGE AREA

(A) Description of fee

- Prior to filing any final map or parcel map, the subdivider shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from the following local and neighborhood drainage areas pursuant to drainage plans adopted by the council therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(D)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PDA boundaries¹:

Fee per acre = \$1,935

(C) Beginning and ending fund balance

- Orangewood planned drainage area

Beginning Balance @ 7/1/22	\$10,300.93
Ending Balance @ 6/30/23	\$10,456.26

(D) Fees collected and interest earned

- | | |
|-------------------|----------|
| • PDA fees | \$0 |
| • Interest Earned | \$155.33 |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Kern County Municipal Code §18.50.060(K)

PIONEER PLANNED DRAINAGE AREA

(A) Description of fee

- Prior to filing any final map or parcel map, the subdivider shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from the following local and neighborhood drainage areas pursuant to drainage plans adopted by the council therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(D)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PDA boundaries¹:

Single Family (per gross acre) = \$11,652.00

Multifamily (per gross acre) = \$18,060.00

(C) Beginning and ending balance

- Pioneer planned drainage area

Beginning Balance @ 7/1/22	\$0
Ending Balance @ 6/30/23	\$196,380.80

(D) Fees collected and interest earned

- | | |
|-------------------|--------------|
| • PDA fees | \$196,380.80 |
| • Interest Earned | \$0 |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 063-14 is available at: <https://docs.bakersfieldcity.us/weblink/0/doc/1064008/Page1.aspx>

RIVERLAKES RANCH PLANNED DRAINAGE AREA

(A) Description of fee

- Prior to filing any final map or parcel map, the subdivider shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from the following local and neighborhood drainage areas pursuant to drainage plans adopted by the council therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(D)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PDA boundaries¹:

Area 1 = \$1,000.00 / gross acre

Area 2 = \$1,008.00 / gross acre

Area 3 = \$1,833.00 / gross acre

(C) Beginning and ending fund balance

- Riverlakes Ranch planned sewer area

Beginning Balance @ 7/1/22 \$ 59.72

Ending Balance @ 6/30/23 \$ 692.77

(D) Fees collected and interest earned

- PDA fees \$ 627.00
- Interest Earned \$ 6.05

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 89-91 available at: <http://lf/WebLink/0/doc/3288/Page1.aspx>

SHALIMAR PLANNED DRAINAGE AREA

(A) Description of fee

- Prior to filing any final map or parcel map, the subdivider shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from the following local and neighborhood drainage areas pursuant to drainage plans adopted by the council therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(D)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PDA boundaries¹:

\$1,689.50 per acre

(C) Beginning and ending fund balance

- Shalimar planned drainage area

Beginning Balance @ 7/1/22	\$178,538.74
Ending Balance @ 6/30/23	\$184,498.92

(D) Fees collected and interest earned

- | | |
|-------------------|-------------|
| • PDA fees | \$ 1,678.52 |
| • Interest Earned | \$ 4,281.66 |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Kern County Resolution No. 77-125

TEVIS RANCH PLANNED DRAINAGE AREA

(B) Description of fee

- Prior to filing any final map or parcel map, the subdivider shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from the following local and neighborhood drainage areas pursuant to drainage plans adopted by the council therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.). BMC §16.32.060(D)

(C) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PDA boundaries¹:

$$\text{Price per acre} = \$715,357.42 \div 453 \text{ acres} = \$1,579$$

(I) Beginning and ending fund balance

- Tevis Ranch planned drainage area

Beginning Balance @ 7/1/22	\$30,092.36
Ending Balance @ 6/30/23	\$30,808.15

(J) Fees collected and interest earned

- PDA fees \$715.79
- Interest Earned \$0

(K) Public Improvements

- N/A

(L) Timing of projects

- N/A

(M) Interfund transfers/loans

- N/A

(N) Refunds

- N/A

¹ Resolution No. 159-03 available at: <http://lf/WebLink/0/doc/210240/Page1.aspx>